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public property. If the principle only applies to the property which is admitted to be exempt, then we have no right to extend the exemption.

The first question, therefore, is—What is the principle on which the exemption of the person of sovereigns and of certain public properties has been recognised? “Our king,” says Blackstone (B. 1, c. 7), “owes no kind of subjection to any other potentate on earth. Hence it is that no suit or action can be brought against the king, even in civil matters, because no Court can have jurisdiction over him. For all jurisdiction implies superiority of power; authority to try would be vain and idle without an authority to redress, and the sentence of a Court would be contemptible unless the Court had power to command the execution of it, but who shall command the king?” In this passage, which has been often cited and relied on, the reason of the exemption is the character of the sovereign authority, its high dignity, whereby it is not subject to any superior authority of any kind. “The world,” says Wheaton, adopting the words of the judgment in the case of *The Exchange* (1), “being composed of distinct sovereignties, possessing equal rights and equal independence, all sovereigns have consented to a relaxation in practice, under certain peculiar circumstances, of that absolute and complete jurisdiction within their respective territories which sovereignty confers.” “This perfect equality and absolute independence of sovereigns has given rise to a class of cases in which every sovereign is understood to waive the exercise of a part of that complete exclusive territorial jurisdiction which has been stated to be the attribute of every nation.” “One of these is the exemption of the person of the sovereign from arrest or detention within a foreign territory. Why have the whole world concurred in this? The answer cannot be mistaken. A foreign sovereign is not understood as intending to subject himself to a jurisdiction incompatible with his dignity and the dignity of his nation.” By dignity is obviously here meant his independence of any superior authority. So Vattel, Lib. 4, c. 7, s. 108, speaking of sovereigns, says:—“S’il est venu en voyageur, sa dignité seule, et ce qui est dû à la nation qu’il représente et qu’il gouverne, le met à couvert de toute insulte, lui

(1) 7 Cranch, 116.

assurer des respects et toute sorte d'égards, et l'exempte de toute juridiction."

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In the case of *The Duke of Brunswick v. The King of Hanover* (1), the suit was against the king. There was a demurrer to the jurisdiction. Lord Langdale in an elaborate judgment allowed the demurrer. He rejected the alleged doctrine of a fictitious extra-territoriality; he admitted that there are some reasons which might justify the exemption of ambassadors which do not necessarily apply to a sovereign, but he nevertheless adopted an analogy between the cases of the ambassadors and the sovereign, and allowed the demurrer on the ground that the sovereign character is superior to all jurisdiction. "After giving to the subject," he says (2), "the best consideration in my power, it appearing to me that all the reasons upon which the immunities of ambassadors are founded do not apply to the case of sovereigns, but that there are reasons for the immunities of sovereign princes, at least as strong if not much stronger than any which have been advanced for the immunities of ambassadors; that suits against sovereign princes of foreign countries must, in all ordinary cases in which orders or declarations of right may be made, and in requests for justice, which might be made without any suit at all; that even the failure of justice in some particular cases would be less prejudicial than attempts to obtain it by violating immunities thought necessary to the independence of princes and nations, I think that on the whole it ought to be considered as a general rule, in accordance with the law of nations, that a sovereign prince resident in the dominions of another is exempt from the jurisdiction of the Courts there."

From all these authorities it seems to us, although other reasons have sometimes been suggested, that the real principle on which the exemption of every sovereign from the jurisdiction of every Court has been deduced is that the exercise of such jurisdiction would be incompatible with his regal dignity—that is to say, with his absolute independence of every superior authority. By a similar examination of authorities we come to the conclusion, although other grounds have sometimes been suggested, that the immunity of an ambassador from the jurisdiction of the Courts of

(1) 6 Beav. 1.

(2) 6 Beav. 1, at p. 50.

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the country to which he is accredited is based upon his being the representative of the independent sovereign or state which sends him, and which sends him upon the faith of his being admitted to be clothed with the same independence of and superiority to all adverse jurisdiction as the sovereign authority whom he represents would be.

The reason of the exemption of ships of war and some other ships must be next considered, and the first case to be carefully considered is, and always will be, *The Exchange*. (1) It is undoubted that the decision applies, in fact, only to the case of a ship of war. Yet, in considering what was the principle on which the judgment was founded, there are some important circumstances to which attention must be directed. The plaintiffs filed their libel against the schooner *Exchange*, found in an American port, and prayed for the usual process to attach the vessel, and that she might be restored to her owners. Upon this libel the usual process in a cause of restitution was issued and executed, that is to say, the vessel was detained. There was no appearance in the suit. Then the usual proclamations issued for all persons to appear and shew cause why the vessel should not be restored to the owners. No person appeared. Then the Attorney-General of the United States appeared and filed a suggestion. In this it must be noticed that the vessel is not described as "an armed ship of war," but as "a certain public vessel belonging to his Imperial Majesty, and actually employed in his service." It certainly is to be remarked that those who conducted this case with unusual ability, deliberately, in stating the cause of objection, rested the claim of exemption not on the fact of the vessel being an armed ship of war, but on the fact of her being one of a larger class, namely, "a public vessel belonging to a sovereign, and employed in the public service." It is upon the suggestion so pleaded, that the Court gives judgment. It is right, however, to say that the fact of the vessel being an armed ship of war was before the Court, and that the judgment frequently uses that phrase, though by no means invariably. It is impossible within reasonable bounds to set out the elaborate judgment of Marshall, C.J., and the Court. The reasoning seems to be as

(1) 7 Cranch, 116.

follows:—The ship is within the territorial jurisdiction of the United States—*primâ facie* the Court of the United States has jurisdiction. But all nations have agreed to certain limitations of their absolute territorial jurisdiction—as, for instance, they have abjured all personal jurisdiction over a foreign sovereign within their territory, and this on account of his dignity, and all personal jurisdiction over foreign ministers, and, says the judgment, this is on the same principle; and all jurisdiction over a foreign army passing through the territory. Is the same immunity to be held to apply to ships of war? The judgment answers, Yes, and upon the same principle: i.e., that to hold otherwise would be inconsistent with the dignity—that is to say, the recognised independence of the foreign sovereign. After dealing with the case of private foreigners and merchant vessels in a foreign country, the judgment continues, “But in all respects different is the situation of a public armed ship; she constitutes a part of the military force of her nation, acts under the immediate and direct command of her sovereign, is employed by him in national objects. He has many and powerful motives for preventing those objects from being defeated by the interference of a foreign state. Such interference cannot take place without affecting his power and dignity. The implied license therefore under which such vessel enters a friendly port may reasonably be construed, and it seems to the Court ought to be construed, as containing an exemption from the jurisdiction of the sovereign within whose territory she claims the rites of hospitality.”

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The Prins Frederik (1) seems to us to be worthy of great attention. An armed ship of war belonging to the King of the Netherlands, was arrested on a claim for salvage. The case was elaborately argued upon the question of jurisdiction. An argument of the closest and most forcible reasoning, to which we see no answer, was presented by Dr. Arnold, the Admiralty advocate (see p. 466). “There is a class of things,” he says, “which are not subject to the ordinary rules applying to property, which are not liable to the claims or demands of private persons, which are described by civilians as *extra commercium*, and in a general enumeration are by them denominated *sacra religiosa, publica*

(1) 2 Dod. 451.